Suchitra

IN THE HIGH COURT OF BOMBAY AT GOA

CRIMINAL WRIT PETITION NO.18/2023

NEVILLE B. FURTADO … PETITIONER

Versus

STATE THR. POLICE INSPECTOR AND ANR. … RESPONDENTS

Mr M. Toraskar, Advocate for the Petitioner.
Mr S. Karpe, Additional Public Prosecutor for the State.

CORAM: ASHWIN D. BHOBE, J.

DATED: 21st OCTOBER 2026

P.C. :

1. Heard Mr Toraskar, learned Advocate for the Petitioner and Mr S. Karpe, learned Additional Public Prosecutor for the Respondent-State.

2. By the present Petition filed under Article 227 of the Constitution of India, the Petitioner has sought the following substantive relief:

> "***(a)*** *That this Hon'ble Court in exercise of its inherent jurisdiction under Section 482 Code of Criminal Procedure, be pleased to quash and set aside Impugned Judgment and Order dated 11.01.22 of the Addl. Sessions Judge at Margao in Criminal Revision Application No.33/20.*"

3. This matter was heard for some time on 19.10.2026. Mr Toraskar, learned Advocate for the Petitioner sought an accommodation to take instructions from the Petitioner. As such, this Petition was listed today.

4. Today, Mr Toraskar, learned Advocate for the Petitioner on instructions of the Petitioner, seeks leave to withdraw the present Petition with liberty to take recourse to the civil remedies as available to the Petitioner in respect of the DC proceedings bearing No.88.

5. Mr Karpe, learned Additional Public Prosecutor for the Respondent-State does not oppose the request made by Mr Toraskar, learned Advocate for the Petitioner and submits that all the civil remedies of the Petitioner can be left open.

6. In view of the statement made by Mr Toraskar, learned Advocate for the Petitioner, leave is granted to withdraw this Petition with liberty as prayed. If the Petitioner intends to file any proceedings enforcing his civil rights, all contentions of the Petitioner are left open. If such proceedings are filed, the same be considered on its own merits and in accordance with law.

7. Criminal Writ Petition is disposed of in the above terms.

ASHWIN D. BHOBE, J.

Signed by: SUCHITRA NANDAN SINGBAL
Designation: Personal Assistant
Date: 21/10/2026 17:31:51